

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-04

CHINA UNITED LINES, LTD,
COMPLAINANT,

v.

AMAZON.COM SERVICES LLC

and

AMAZON LOGISTICS INC.

and

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

RESPONDENTS.

DECLARATION OF BRYCE M. CULLINANE IN SUPPORT OF
MOTION TO COMPEL – SIMILAR CONTRACTS

I, Bryce M. Cullinane, declare as follows:

1. I am an attorney duly admitted to practice before this Tribunal. I am employed by Theodora Oringer PC, attorneys of record for China United Lines, Ltd., (“China United”), Complainant in this matter. If called as a witness, I could and would competently testify to all the facts herein based on my personal knowledge, except where stated upon information and belief.
2. I submit this declaration in support of China United’s Motion to Compel - Similar Contracts (the “Motion”).

3. On July 11, 2025, China United served its first set of Interrogatories and Requests for Production of Documents on Respondents Amazon.com Services, LLC, Amazon Logistics, LLC, and Beijing Century Joyo Courier Service Co., Ltd., (“Amazon”). China United’s Document Requests consisted of Request Nos. 1-53. Pursuant to 46 C.F.R. § 502.150 (2)(ii), true and accurate copies of Request Nos. 48-51 (the “Requests”) are attached hereto as **Exhibit A**.

4. Amazon served its responses and objections to the Requests on August 11, 2025. Amazon refused to provide responsive documents. Pursuant to 46 C.F.R. § 502.150 (2)(iii), true and accurate copies of Amazon’s responses to the Requests are attached hereto as **Exhibit B**.

5. On October 16, 2025, I met and conferred with counsel for Amazon by letter, in a good faith attempt to avoid filing the instant Motion. In my letter, I explained that the Requests are “clearly relevant to whether Amazon had any genuine basis for terminating the Work Order with China United for cause or did so in good faith,” and indicated that Amazon’s objections were unwarranted. China United’s Oct. 16, 2025 Letter, p. 2. A true and accurate copy of this correspondence is attached hereto as **Exhibit C**.

6. Amazon did not respond to my letter until November 10, 2025. In its response, Amazon maintained that it would not produce documents responsive to the Requests because, in Amazon’s view, the documents were “irrelevant to any claim or defense remaining in this case.” Amazon’s Nov. 10, 2025 Letter, p. 3. A true and accurate copy of this correspondence is attached hereto as **Exhibit D**.

7. Amazon’s corporate representative, David Cardadeiro, testified that Amazon terminated its service contract with China United “for cause” because China United used and disclosed confidential information relating to the parties’ commercial relationship. Specifically,

Mr. Cardadeiro stated that the “confidential information” China United used and disclosed was the relationship between China United and Amazon. Cardadeiro Tr. 13:10-14:2. A true and accurate excerpt of this testimony is attached hereto as **Exhibit E**.

8. During this proceeding, China United informed me of a May 31, 2022 press release by the carrier ZIM, discussing its ZL MAX service and its relationship with Amazon. My office produced the original version of this press release, in Mandarin (with Bates Number CUL003067) and the English translated version (with Bates Number CUL003466) to Amazon. True and accurate copies of this press release are attached hereto as **Exhibit F**.

9. David Cardadeiro testified that Amazon partnered with ZIM in 2022. He stated “In 2022 I want to say we probably yes, [were] using ZIM.” Cardadeiro Tr. 152:12-15. A true and accurate excerpt of this testimony is attached hereto as **Exhibit G**.

10. Former Amazon employee Becky Moore testified that as of September 2023, Amazon was in a relationship with ZIM. Moore Tr. 21:6-14. A true and accurate excerpt of this testimony is attached hereto as **Exhibit H**.

11. David Cardadeiro testified that Amazon still partners with ZIM today. Cardadeiro Tr. 152:12-153:3. A true and accurate excerpt of this testimony is attached hereto as **Exhibit I**.

12. Having raised the issues related to the Requests with Amazon and receiving Amazon’s refusal to produce responsive documents, the instant Motion has become necessary.

[signature page follows]

I declare under penalty of perjury that the foregoing is true and correct.

Executed on this 13th day of February, 2026, at Costa Mesa, California.

A handwritten signature in blue ink, appearing to be 'BC', is written over a horizontal line.

Bryce Cullinane

PROOF OF SERVICE

I, Ileen Osorio, hereby certify that on this 13th day of February, 2026, a copy of the foregoing **Declaration of Bryce M. Cullinane in Support of Motion to Compel – Similar Contracts** was served via email, on the following:

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